

25STCP03435 25STCP03435

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-07-31

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Case Number: 25STCP03435 Hearing Date: July 31, 2026 Dept: 833

Paul Vinetz, Case No. 25STCP03435

Hearing:

July 31, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833

Civil Service Commission of Judge: Joseph

Lipner

Los

Angeles County

[Tentative] Order

Denying Petition for Writ of Mandate

Petitioner Paul Vinetz ("Petitioner") seeks a writ of mandate requiring real parties County of Los Angeles, County of Los Angeles Probation Department, and the Respondent Civil Service Commission of the County of Los Angeles ("Respondent") to reverse the administrative decision reducing Petitioner's role from Bureau Chief to Administrative Deputy I.

DISCUSSION

Under Code of

Civil Procedure section 1094.5, subd. (b), the pertinent issues are whether the respondent has proceeded without jurisdiction, whether there was a fair trial, and whether there was a prejudicial abuse of discretion. An abuse of discretion is established if the agency has not proceeded in the manner required by law, the decision is not supported by the findings, or the findings are not supported by the evidence. (Code Civ. Pro. § 1094.5(b).)

An agency is presumed to have regularly performed its official duties. (Evid. Code § 664.) The petitioner seeking administrative mandamus has the burden of proof and must cite to the administrative record to support its contentions. (See *Bixby v. Pierno* (1971) 4 Cal. 3d 130, 143; *Steele v. Los Angeles County Civil Service Commission*, (1958) 166 Cal. App. 2d 129, 137; see also *Alford v. Pierno* (1972) 27 Cal.App.3d 682, 691.) “[A] trial court must afford a strong presumption of correctness concerning the administrative findings.” (See *Fukuda v. City of Angels* (1999) 20 Cal. 4th 805, 817.) A reviewing court “will not act as counsel for either party ... and will not assume the task of initiating and prosecuting a search of the record for any purpose of discovering errors not pointed out in the briefs.” (*Fox v. Erickson* (1950) 99 Cal.App.2d 740, 742.)

A memorandum of points and authorities is required for a noticed mandamus motion. (See Code Civ. Pro. § 1094; California Rules of Court, Rule 3.1113, subd. (a).) The absence of a memorandum is an admission that the motion is not meritorious and may be denied. (Rule 3.1113, subd. (a).) “The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.” (Rule 3.1113, subd. (b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [Cal. Rules of Court, Rule 3.1113 “rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories”].)

“In a section 1094.5 proceeding, it is the responsibility of the petitioner to produce a sufficient record of the administrative proceedings; ‘... otherwise the

presumption of regularity will prevail, since the burden falls on the petitioner attacking the administrative decision to demonstrate to the trial court where the administrative proceedings were unfair, were in excess of jurisdiction, or showed 'prejudicial abuse of discretion.'" (Elizabeth D. v. Zolin (1993) 21 Cal.App.4th 347, 354; see also Eureka Citizens for Responsible Government v. City of Eureka (2007) 147 Cal.App.4th 357, 366 ["Failure to provide an adequate record concerning an issue challenged on appeal requires that the issue be resolved against the appellants."])

On February 4, 2026, the Court (Goorvitch, J.) issued a minute order, declaring that the trial date would be July 15, 2026, the opening brief would be filed 60 days in advance of trial, the opposition brief would be filed 30 days in advance of trial, and the reply brief would be filed 15 days in advance of trial. The administrative record would need to be served at least 60 days in advance of trial.

Petitioner filed no opening brief on May 15, 2026, and the Court obtained no administrative record for this case. On June 15, 2026, the Court set for today an OSC for failure to file an opening brief.

Petitioner's counsel submitted a declaration on July 20, 2026. In that declaration, Petitioner's counsel declared that he wrongly calendared the trial date to be September 15, 2026, which would make the opening brief due on July 15, 2026. (Lizardo Decl., ¶ 2.) Petitioner's counsel claimed that he failed to timely file the opening brief by mistake and is prepared to file an opening brief imminently. (Lizardo Decl., ¶¶ 7-9.) Petitioner's counsel notes that the Court may grant relief from an attorney's mistake under Code of Civil Procedure, Section 473, subd. (b).

A motion for relief under Code of Civil Procedure, Section 473, subd. (b) is proper only after the entry of a "judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).)

Because of Petitioner's failure to file an opening brief, the Court denies the

petition. Petitioner's counsel may bring a properly noticed motion for relief from this dismissal order and the Court will consider arguments from both parties on whether relief is appropriate.

CONCLUSION

The Court DENIES the petition for writ of mandate on the grounds that Petitioner has failed to prosecute the case and failed to file an open brief.

Pursuant to Local Rule 3.231, subd. (n), Respondent shall prepare, serve, and ultimately file a proposed judgment

IT IS SO ORDERED.

Dated: July 31,
2026 _____

Joseph
Lipner

Superior
Court Judge